

		get any money back.” (<i>Id.</i>, at p. 4.) The Consumer Attorneys of California commented in support of the bill. They wrote, “Several studies show that consumers read reviews before making a purchase; we agree that businesses should not attempt to block the transparency of this information to conceal potentially poor and unsatisfactory business practices.” (<i>Id.</i>, at p. 5.) In sum, the legislative history confirms that Civ. Code § 1748.50 concerns nondisclosure provisions required as a condition of refunds. B. <u>Application</u> The settlement agreement at issue resolved a personal injury claim sounding in products liability. The offending provision did not require confidentiality or non-disparagement as a condition of receiving a refund. Rather, confidentiality or non-disparagement was required as a condition of receiving a payment to settle a personal injury lawsuit. The Court is not suggesting that all lawsuit settlements are automatically immune from Civ. Code § 1748.50. Suppose, for example, a dissatisfied consumer, stonewalled in informal efforts to resolve his complaints, filed suit for a refund. In that circumstance, perhaps a settlement payment might properly be considered a refund subject to the statute. But no such facts are before the Court. Plaintiff undisputedly settled a personal injury claim. His complaint in the prior lawsuit claims standard personal injury damages. Plaintiff did not seek to recover the purchase price for his vehicle. (RJN, Ex. B, at ¶ 11.) Because Plaintiff’s settlement agreement is not covered by Civ. Code § 1748.50, Defendants’ demurrer is sustained. Further, because the Court does not see how this defect can be cured by amendment, leave to amend is denied.
10	CITY OF IRVINE, a Municipal corporation vs. ENTERPRISES LIMITED PARTNERSHIP, a California Limited Partnership 2026-01554211	Plaintiff’s Motion to Prejudgment Possession Before the Court are motions for prejudgment possession in five eminent domain cases arising from the City of Irvine’s planned improvement of the intersection of Jamboree Road and Barranca Parkway: 1. <i>City of Irvine v. ERD Enterprises Limited Partnership</i>, No. 26-01554211 2. <i>City of Irvine v. Corporate Park Property Owner’s Association, Inc.</i>, No. 26-01554947 3. <i>City of Irvine v. Thrifty Oil Co.</i>, No. 26-01554208 4. <i>City of Irvine v. Blackburg, Inc.</i>, No. 26-01554305 5. <i>City of Irvine v. 96 Corporate Park</i>, No. 26-01554983 The City’s motions in <i>Thrifty Oil</i> and <i>Blackburg</i> are opposed by Tesla, Inc., an alleged tenant of the properties at issue. Tesla’s oppositions are joined by Thrifty Oil and Blackburg, the property owners of record. The other three motions are unopposed. All five motions for prejudgment are DENIED WITHOUT PREJUDICE. <u>GROUND S FOR RULING</u> CCP § 1255.410(a) requires that a motion for prejudgment possession “state the date after which the plaintiff is seeking to take possession of the property.” None of the City’s five motions included this date. After Tesla pointed out this omission in its two oppositions, the City served a “Notice of Requested Date for Prejudgment Possession” in each of the five cases on September 3, 2026. Tesla contends the City’s omission of the date warrants denial of the two motions. The Court agrees. Moreover, because this defect is present in each of the five motions, all five must be denied. “‘The proceeding to condemn

		land for a public use is special and statutory and the prescribed method in such cases must be strictly pursued’ [citation] especially if those methods benefit the owner.” (<i>City of Needles v. Griswold</i> (1992) 6 Cal.App.4th 1881, 1895.) The requirement that a motion for prejudgment possession state the date the plaintiff seeks possession of the property is a requirement that benefits the property owner insofar as it provides certainty about the condemning agency’s intentions at the time the motion is filed, rather than days before the hearing (as the City has done here). The City’s omission of the date requires denial of the five motions without prejudice to refiling motions that comply with the requirements of CCP § 1255.410. In its replies to Tesla’s oppositions, the City argues it substantially complied with the statute, and substantial compliance is all that is required. It cites <i>Poway Unified School Dist. v. Chow</i> (1995) 39 Cal.App.4th 1478. There, the property owner sought to recover his litigation expenses under CCP § 1250.410(b), which allows a court to award the property owner litigation expenses as costs if the agency’s statutory final offer of compensation was unreasonable and the property owner’s was reasonable. A motion for recovery of litigation expenses must be filed “within 30 days after entry of judgment.” (<i>Ibid.</i>) In <i>Poway</i>, the clerk entered judgment on May 14 but never served a notice of entry of judgment. The property owner’s counsel learned of the judgment on May 17 and filed a costs motion (including litigation expenses) on June 15—more than 30 days after judgment was entered, but less than 30 days after counsel learned judgment had been entered. The property owner first argued that because the clerk had never served a notice of entry of judgment, the clock never began to run. The appellate court disagreed, holding the statute clearly referred to “entry of judgment,” not “notice of entry of judgment,” as the triggering event. (<i>Poway, supra</i>, 39 Cal.App.4th at p. 1483.) The property owner next argued that he had substantially complied with the statute. Here, the appellate court agreed. It explained that in other circumstances, courts allowed late-filed costs memoranda under CCP § 473. (<i>Id.</i>, at p. 1484 (collecting cases).) It then held, “section 1250.410 does not preclude a court from granting relief under section 473 if there is substantial compliance with the statute and the opposing party is not prejudiced.” (<i>Ibid.</i>) The appellate court expressly noted that the property owner’s counsel had submitted a declaration claiming the delay in filing the motion was due to his mistake, inadvertence, or excusable neglect. (<i>Id.</i>, at p. 1485.) <i>Poway</i> is inapposite for two reasons. First, it applies the doctrine of substantial compliance to benefit the property owner, not the condemning agency. The City invokes substantial compliance for its own benefit, not the property owner’s. This runs counter to <i>City of Needles</i>, which teaches that strict compliance is particularly appropriate when requiring strict compliance would benefit the property owner. Second, even if substantial compliance were appropriate here, relief in <i>Poway</i> was ultimately based on CCP § 473 and an attorney declaration of fault. No such declaration has been filed in any of the five cases.
11	City of Irvine vs. Corporate Park Properties Owner’s Association, Inc. 2026-01554947	Plaintiff’s Motion to Prejudgment Possession See line item #10 above
12	City of Irvine vs. Thrifty Oil Co. 2026-01554208	Plaintiff’s Motion to Prejudgment Possession See line item #10 above